IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-IV

ITEM No. 401
CP(CAA)/3/ND/2025

IN THE MATTER OF:

SCHEME OF MERGER OF

BRIGHTSUN EQUITY FINVEST PRIVATE LIMITED

... Transferor Company-1

AND

EVERGLOW EQUITY LEASING PRIVATE LIMITED

...Transferor Company-2

AND

RISHIKESH BARTER PRIVATE LIMITED

...Transferor Company-3

AND

SHYAM TRADEX PRIVATE LIMITED

...Transferor Company-4

AND

SURYA CHEMPHOS PRIVATE LIMITED

...Transferor Company-5

AND

TEN EQUITY LIMITED

...Transferor Company-6

WITH

SPARSH DEALMARK PRIVATE LIMITED

...Transferee Company

Under Section 230-232 of the Companies Act 2013

Order delivered on 21.04.2026

CORAM:
SHRI ASHOK KUMAR BHARDWAJ
HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:

For the Applicant	:	Mr. Iswar Mohapatra, Adv.
For the Income Tax Department	:	Mr. Puneet Rai (SSC), Mr. Rishabh Nangia (JSC), Mr. Ashvini Kumar (JSC), Mr. Nikhil Jain and Ms. Srishti Sharma, Advs., for the Income Tax Department

ORAL ORDER

1. In the first motion application preferred by the Applicants in CA(CAA)/78(ND)2024, we passed the order dated 18.12.2024, dispensing with the meeting of the stakeholders. The relevant excerpt of the order reads thus:

> 36. In light of the submissions and the corroborating documents filed therewith, the following directions are issued forthwith pertaining to convening/holding or dispensing with the meetings of the Equity Shareholders, Secured and Unsecured Creditors as well as issue of notices including by way of proper publication as follows:
>
> **A. In relation to the Transferor Company No.1:**
>
> a) **With respect to Equity Shareholders:** In view of consent affidavits from 2 Equity Shareholders having 100% voting share, convening/holding the meeting of Shareholders is dispensed with.

> b) **With respect to Secured Creditors:** In view of No Objection Certificates from 2 Secured Creditors, convening/holding the meeting of Secured Creditors is dispensed with.
>
> c) **With respect to Unsecured Creditors:** In view of consent affidavits from a 2 Unsecured Creditors, convening/holding the meeting of 2 Unsecured Creditors is dispensed with.

B. In relation to the Transferor Company No.2:

a) **With respect to the Equity Shareholders:** In view of consent affidavits from 2 Equity Shareholders having 100% voting share, convening/holding the meeting of Shareholders is dispensed with.

b) **With respect to Secured Creditors:** In view of No Objection Certificate from sole Secured Creditor, convening/holding the meeting of Secured Creditor is dispensed with.

c) **With respect to Unsecured Creditors:** In view of consent affidavits from 4 Unsecured Creditors, convening/holding the meeting Unsecured Creditors is dispensed with.

C. In relation to the Transferor Company No.3:

a) **With respect to Equity Shareholders:** In view of consent affidavits from 2 Equity Shareholders having 100% voting share, convening/holding the meeting of Shareholders is dispensed with.

b) **With respect to Secured Creditors:** In view of No Objection Certificate from sole Secured Creditor, convening/holding the meeting of Secured Creditor is dispensed with.

c) **With respect to Unsecured Creditors:** In view of consent affidavits from the sole Unsecured Creditor, convening/holding the meeting of Unsecured Creditor is dispensed with.

D. In relation to the Transferor Company No.4:

a) **With respect to Equity Shareholders:** In view of consent affidavits from 2 Equity Shareholders having 100% voting share, convening/holding the meeting of Shareholders is dispensed with.

b) **With respect to Secured Creditors:** In view of consent affidavits from sole Secured Creditor, convening/holding the meeting of Secured Creditor is dispensed with.

c) **With respect to Unsecured Creditors:** Since there are no Unsecured Creditors, therefore the necessity of convening/holding a meeting does not arise.

E. In relation to the Transferor Company No.5:

a) **With respect to the Equity Shareholders:** In view of consent affidavits from 7 shareholders having 100% voting share, convening/holding the meeting of Shareholders is dispensed with.

b) **With respect to Secured Creditors:** Since there are no Secured Creditors, therefore the necessity of convening/holding a meeting does not arise.

c) **With respect to Unsecured Creditors:** In view of consent affidavits from the sole Unsecured Creditor, convening/holding the meeting of Unsecured Creditor is dispensed with.

F. In relation to the Transferor Company No.6:

a) **With respect to the Equity Shareholders:** In view of consent affidavits from 7 shareholders having 100% voting share, convening/holding the meeting of Shareholders is dispensed with.

b) **With respect to Secured Creditors:** In view of consent affidavits from 2 Secured Creditors, convening/holding the meeting of Secured Creditors is dispensed with.

c) **With respect to Unsecured Creditors:** Since there are no Unsecured Creditors, therefore the necessity of convening/holding a meeting does not arise.

G. In relation to the Transferee Company:

d) **With respect to the Equity Shareholders:** In view of consent affidavits from 3 shareholders, convening/holding the meeting of shareholders is dispensed with.

e) **With respect to Secured Creditors:** Since there are no Secured Creditors, therefore the necessity of convening/holding a meeting does not arise.

f) **With respect to Unsecured Creditors:** Since there are no Unsecured Creditors, therefore the necessity of convening/holding a meeting does not arise.

2. On filing of the second motion petition, we issued notice in terms of the provisions of Section 230(5) of the Companies Act, 2013. Ld. Counsel for the Applicants submitted that the turnover of none of the companies exceed Rs. 1000 crores and there is no foreign investment in either of the Applicant Companies, thus no response is needed from the Competition Commission of India and RBI.

3. As far as the Official Liquidator and RD are concerned, as we can see from the order dated 03.02.2026 they conveyed their no objection to approval of the scheme. The order reads thus:

> ***By proceeding dated 08.04.2025, Ld. Counsel for the Official Liquidator had submitted that they have already filed the report and they have no objection in allowing the present application.***
> ***By proceeding dated 29.07.2025, Learned Counsel for the Regional Director had submitted that they have received the reply to RD's report and they have no further observations.***

4. Today, Ms. Srishti Sharma, Ld. Counsel for the Income Tax Department submitted that the said department has also no objection to the scheme.

5. In the wake, the scheme is approved, subject to following conditions/directions:

i. All the property, rights and entitlement of the Transferor Companies pertaining to the Business would be transferred, without further act or deed, to the Transferee Company and accordingly, the same shall pursuant to Sections 230 to 232 of the Companies Act, 2013, be transferred to and vested in the Transferee Company for all the estate and

interest of the Companies but subject to payment of all charges affecting the same;

ii. That all the liabilities/responsibilities of the Transferor Companies pertaining to the Business be transferred, without further act or deed, to the Transferee Company and accordingly the same shall pursuant to Sections 230 to 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Transferee Company;

iii. All the employees of the Transferor Companies shall be deemed to have become the employees and the staff of the Transferee Company with effect from the Appointed Date, and shall stand transferred to the Transferee Company without any interruption of service and on the terms and conditions no less favourable than those on which they are engaged by the Transferor Companies, as on the Effective Date, including in relation to the level of remuneration and contractual and statutory benefits, incentive plans, terminal benefits, gratuity plans, provident plans and any other retirement benefits.

iv. All contracts of the Transferor Companies, which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favour of the Transferee Company and may be enforced by or against it as fully

and effectually as if, instead of the Transferor Companies, the Transferee Company had been a party or beneficiary or obliged thereto.

v. All benefits, entitlements, incentives and concessions under incentive schemes and policies that the Transferor Companies are entitled to including under Customs, Excise, Service Tax, VAT, Sales Tax, GST and Entry Tax and Income Tax laws, subsidy receivables from Government, grant from any governmental authorities, direct tax benefit/exemptions/ deductions, shall, to the extent statutorily available and along with associated obligations, stand transferred to and be available to the Transferee Company as if the Transferee Company was originally entitled to all such benefits, entitlements, incentives and concessions.

vi. The Income Tax Department shall have the liberty to determine the tax implications of the amalgamation under the Act, which shall prevail over the scheme, and even in case of liabilities arising against Transferor Companies the Transferee Company shall be responsible/liable.

vii. All proceedings now pending by or against the Transferor Companies be continued by or against the Transferee Company.

viii. That the Appointed Date for the scheme shall be 01.04.2024 as specified in the scheme;

ix. That the Petitioner Companies shall, within 30 days after the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration in the prescribed form.

x. That any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary;

xi. As per the aforesaid directions, formal orders in Form No. CAA-7 of Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 be issued after the filing of the Schedule of Properties within three weeks from the date of receiving a certified copy of this order by the Petitioners.

xii. However, it is directed that none of the companies would infringe the provisions of section 6 of the Companies Act, 2013.

xiii. The order would also not entitle either the amalgamated company to exemption from any of the applicable law at any level. The Transferee Company would be liable to pay the stamp duties etc., as payable in respect of the scheme of amalgamation. However, it is made clear that the present order would not entitle the Transferee Company to any exemption from requirement of obtaining license/permit/ registration/ quota/clearance/concessions/grants, needed by it from Central Government, State Government, Local authority, Sectoral regulator or any other authority constituted under any other law for the time being in force.

6. All the concerned Regulatory Authorities are to act on a copy of this order annexed with the Scheme duly authenticated by the Registrar.

7. In terms of aforesaid directions, the **CP(CAA)-3/ND/2025** stands **disposed of**.

-Sd-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-Sd-
(ASHOK KUMAR BHARDWAJ)
MEMBER (JUDICIAL)